PRIVILEGED RESEARCH MEMORANDUM (PLAINTIFF'S WORK PRODUCT, NOT FOR FILING)

To	Brendan Ngwa Nforbi (also Brendan Ngehsi Newanforbi), Plaintiff, in propria persona
From	Research assistant (non-attorney research; not legal advice)
Date	October 25, 2026
Re	*Nforbi v. Candelaria et al.*, N.D. Cal. No. 3:26-cv-08272 — trial-carrying issues, recommended strategy, and citation corrections for the First Amended Complaint (ECF No. 6, filed Aug. 17, 2026)

Revision note (second version, Oct. 25, 2026, evening). This version adds (1) the gap-closure research from official sources (gap-closure.md) and (2) a second Westlaw KeyCite session. The main changes are: the *CDLA*/*Clarke* line is now in an open appellate conflict and under California Supreme Court review (*Romane*, S291093; *Chi*, S296201), which strengthens qualified immunity; a Ninth Circuit lead on DMV immunity (*Sykes*) was read and turns out to be weaker than reported (§ 2); the SR-22 source is corrected to Veh. Code § 13353.4(b) and §§ 16480/16482; and the Coeur d'Alene citation is corrected. The recommendation is to put the weight on the Gov. Code § 11425.30(b)–(c) theory and on prospective relief (§ 3A).

Docket note. The FAC caption reads 3:26-cv-08272-**LJC** (Magistrate Judge Lisa J. Cisneros). Defendants declined magistrate-judge jurisdiction. The case was reassigned to **U.S. District Judge Rita F. Lin** and now carries the suffix **-RFL**. Dkt. 24 (Order Granting Motion to Strike, Oct. 13, 2026) bears the RFL caption. It struck the Sept. 4 answer (Dkt. 11) because that answer responded to the superseded complaint, and it ordered Defendants to respond to the FAC **by October 27, 2026**. Use "-RFL" on all future papers. The Dkt. 11 answer was stricken, but it previews the defenses: quasi-judicial immunity (Aff. Def. 31, citing *Butz*), qualified immunity (32), Eleventh Amendment (11), venue (8), res judicata/collateral estoppel for failure to exhaust judicial remedies (23), lack of standing and ripeness (1, 7), and mitigation and causation (19, 25). Expect a Rule 12 motion on Oct. 27 raising most of these.

How to read the verification labels. Every authority below carries one of these tags:

- **[W]**: Checked on Westlaw with KeyCite on Oct. 25, 2026, on a public law-library seat (results-batch1/batch2.csv). The flag color is noted where relevant.
- **[WK]**: Westlaw-KeyCited in the second Westlaw session (Clark County, NV law-library patron access, Oct. 25, 2026). The KeyCite flag and the quoted passages were read on screen; no printout was saved. Pin pages marked "~" are approximate.
- **[F]**: *Not KeyCited.* Existence, citation, and the quoted or paraphrased language were confirmed against free full text on Oct. 25, 2026: CourtListener full-text search, Justia, leginfo.legislature.ca.gov, or Cornell LII. Subsequent history has **not** been checked.
- **[O]**: Official or free primary source read on Oct. 25, 2026 (leginfo, Cornell LII, courts.ca.gov slip opinion, ca9 slip opinion, CourtListener/RECAP), recorded in gap-closure.md. Text read; no citator.
- **[U]**: Unverified. Named only as a lead. Do not cite it until it is pulled and read.

Quotations are reproduced only where the exact words were matched in a source. Everything else is paraphrase. This memo is research, not legal advice. Before you rely on any authority in a filing, re-read it and run a citator check (Westlaw KeyCite or Lexis Shepard's).

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1. Executive summary: top findings

1. **Absolute immunity is the biggest threat to the damages counts (Counts I–II), and the FAC's "she acted as an advocate, not a judge" theory does not escape it as pleaded.** *Butz* gives absolute immunity to agency adjudicators. It also extends it to agency officials performing functions "analogous to those of a prosecutor" [W/F]. *Imbler* protects advocacy "intimately associated with the judicial phase" [F]. Marshaling and offering exhibits at the hearing is either adjudicative or prosecutorial, and both are absolutely immune. The viable path is the *Cleavinger* line: the "independence" and procedural-safeguard factors. *Cleavinger* denied absolute immunity to prison discipline-committee members who were "not 'independent'" [W/F]. *Cal. DUI Lawyers* supports that line: it describes DMV hearing officers as agency employees assigned an advocacy role (77 Cal.App.5th 517) [W; text read on Justia]. **Reframe ¶¶98 and 118 around the *Cleavinger* factors (lack of structural independence and safeguards), not around "advocacy."** A Westlaw search found **no** published California or Ninth Circuit decision on quasi-judicial immunity for a DMV APS hearing officer. It found two unreported C.D. Cal. rulings (*Rasmussen v. Cal. DMV*, 2009 WL 605784; 2008 WL 5274611) that barred hearing-officer claims on quasi-judicial immunity and *Heck* [WK, search results only]. The *Sykes* lead (9th Cir. 1974) was read in full: it is **not** a hearing-officer case (see § 2) [O].
2. **Preclusion is a more serious risk than *Heck*.** Under *Univ. of Tenn. v. Elliott* [F], federal courts give an unreviewed state agency's judicial-capacity factfinding the preclusive effect it would get in state court. *Miller v. County of Santa Cruz* and *White v. City of Pasadena* apply this in the Ninth Circuit [F]. *Johnson v. City of Loma Linda* [F] holds that if a party does not challenge an agency's adverse findings by a mandate action, "those findings are binding in later civil actions." No timely Veh. Code § 13559 petition (30 days) was filed. The Sacramento mandamus petition (No. 26WM000135, filed around May 2026) was abandoned after the fee waiver was denied. **The best answer is that a hearing without a neutral adjudicator lacks the "judicial capacity" and "adequate opportunity to litigate" that preclusion requires.** That is a strong argument, but it is untested in this specific setting.
3. **Mercer is no longer good authority for the proposition the FAC uses it for.** Veh. Code § 40300.5(e) (added in 1996) superseded Mercer's presence-rule holding. *Troppman v. Valverde* (2007) 40 Cal.4th 1121, fn. 11, says so [F, **not KeyCited**]. Westlaw flags Mercer yellow, "Superseded by Statute as Stated in" *Troppman v. Gourley* and *Dyer* [W]. Calling Mercer "binding" and "controlling" (¶¶4(b), 59, 91, 102(b)) is a candor problem. **Reframe to a no-probable-cause and lawful-arrest theory.** *Troppman* fn. 12 preserves the requirement that the DMV find a lawful arrest, "dependent upon an officer's possessing probable cause" [F].
4. **Qualified immunity on Count I is now a serious risk, because the clearly established law comes from state intermediate courts that are in open conflict, and the California Supreme Court is reviewing the question.** *Romane* (review granted Aug. 13, 2025, S291093) and *Chi*

(review granted May 13, 2026, S296201, deferred pending *Romane*) [WK]. *Chi* says the *Clarke* line "has taken a wrong turn" [WK]. That makes "beyond debate" very hard to show. *Cal. DUI Lawyers* (2022) expressly held that combining advocate and adjudicator in one DMV hearing officer violates the **Fourteenth Amendment**. It also produced a permanent injunction against that practice [read on Justia]. But Supreme Court law requires "controlling authority" or "a robust 'consensus of cases of persuasive authority'" (*Wesby*) [F], so that the question is "beyond debate" (*al-Kidd*) [F]. *Knudsen* (case-by-case) and the KeyCite-flagged *Chi* and *Romane* decisions (no advocacy found) undercut "beyond debate." **Plead the existing injunction plus Candelaria's specific acts. Argue *Hope v. Pelzer* obviousness and *Murchison* as the general rule.** Expect QI to be decided early. **Recommended focus: the Gov. Code § 11425.30(b)–(c) theory and prospective relief against Gordon (§ 3A).**

5. **The remedies need to be trimmed now.**
6. **Kay v. Ehrler** bars § 1988 attorney's fees for a pro se litigant [W]. Costs remain available.
7. **Carey v. Piphus** caps recovery at nominal damages ("not to exceed one dollar") if the same result would have followed with proper process [W/F].
8. Lost-wage causation is weak for the period after Dec. 4, 2024, because the temporary license already barred commercial driving before Candelaria acted.
9. The $125 fee refund is retrospective money relief, which the Eleventh Amendment bars (*Edelman*) [F].
10. The suspension expired Feb. 19, 2026, so relief directed at it is moot.
11. What remains live for Ex parte Young is the **SR-22 and the record entry**. The SR-22 condition comes from Veh. Code § 13353.4(b); release after three years comes from §§ 16480(a)(2) and 16482(b) [O]. No statute says "three years after refusal," so the "about May 2029" end date is DMV practice and should be pinned to the DMV reinstatement letter. Those are "continuing, present adverse effects" (*Villa*/*O'Shea*) [W].

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2. Issue 1: Quasi-judicial absolute immunity for the DMV hearing officer

Controlling law.

- *Butz v. Economou*, 438 U.S. 478, 511–13 (1978) [W, yellow; core holding intact].
- Federal administrative law judges and agency officials receive absolute immunity when the role is "functionally comparable" to a judge's [F].
- Officials "performing certain functions analogous to those of a prosecutor" receive the same protection [F].
- The rationale rests on built-in safeguards: insulation from political influence, the adversary process, and correctability of error on appeal (511–12) [W].
- *Cleavinger v. Saxner*, 474 U.S. 193, 202 (1985) [W] lists the six factors: (a) need to perform the function without harassment; (b) safeguards that reduce the need for damages actions; (c) insulation from political influence; (d) importance of precedent; (e) adversary nature of the process; (f) correctability of error on appeal.

- It **denied** absolute immunity to prison discipline-committee members. They were "not 'independent'" and were in a relationship "hardly ... conducive to a truly adjudicatory performance" [F].
- *Forrester v. White*, 484 U.S. 219, 227–30 (1988) [W]: immunity follows function, not title.
- *Stump v. Sparkman*, 435 U.S. 349 (1978), and *Mireles v. Waco*, 502 U.S. 9 (1991) [F]: judicial acts are immune even when erroneous or malicious. The exceptions are non-judicial acts and acts "taken in the complete absence of all jurisdiction" [F, phrase matched in *Mireles*].
- *Imbler v. Pachtman*, 424 U.S. 409 (1976) [F]: prosecutorial acts "intimately associated with the judicial phase" are absolutely immune.

Ninth Circuit.

- *Mishler v. Clift*, 191 F.3d 998 (9th Cir. 1999) [F]: a state medical board receives absolute immunity for quasi-judicial acts.
- *Olsen v. Idaho State Bd. of Medicine*, 363 F.3d 916 (9th Cir. 2004) [F]: absolute immunity for quasi-judicial and quasi-prosecutorial acts. Westlaw notes *Olsen* as a citing reference on *Forrester* [W].
- *Buckwalter v. Nevada Bd. of Med. Examiners*, 678 F.3d 737 (9th Cir. 2012) [F]: applies the *Cleavinger* factors. It addresses absolute immunity for a board's summary license suspension.
- *Swift v. California*, 384 F.3d 1184, 1191–92 (9th Cir. 2004) [W]: parole officials are immune for adjudicative acts but not for law-enforcement-type acts.
- **DMV hearing officers specifically: Westlaw search results [WK].** A Westlaw search for quasi-judicial immunity of DMV hearing officers returned **0** results in California state courts and the Ninth Circuit. It returned 2 unreported C.D. Cal. results: *Rasmussen v. Cal. Dep't of Motor Vehicles*, 2009 WL 605784, and 2008 WL 5274611 (C.D. Cal.). Both held hearing-officer claims barred by quasi-judicial immunity and by *Heck*. They were seen as search results and summaries only; read them in full before citing. They are not binding, but a district judge may find them persuasive.
- ***Sykes v. California (DMV)*, 497 F.2d 197 (9th Cir. 1974) [O: full text read on OpenJurist and CourtListener, Oct. 25, 2026; NOT KeyCited; the pin "201" was not confirmed because the free text lacks F.2d page breaks].** This was reported as holding that a DMV hearing officer has quasi-judicial immunity. **The full text does not support that description.**
- There was no DMV hearing officer and no APS hearing. The DMV defendant, Hoover, was a DMV "representative" who investigated a car dealer and had "discretionary power to grant or refuse licenses to sell motor vehicles."
- The court called the district attorneys' immunity "quasi-judicial." It rested Hoover's immunity on a different, broader rule: immunity for "public employees acting within the scope of their discretionary duties and official functions" (citing *Silver v. Dickson*, 403 F.2d 642 (9th Cir. 1968)). Under that rule, "his motives are considered immaterial."
- It also held the DMV itself is not a "person" under § 1983.
- **Assessment:** *Sykes* is verified to exist and is published Ninth Circuit authority. But it is **not** a serious adverse controlling authority on a hearing officer's adjudicative immunity. Its "discretionary function" absolute-immunity rule predates *Scheuer v. Rhodes*, 416 U.S. 232 (1974), and *Butz* (1978). Those cases generally give executive officials only qualified immunity,

and the modern test is functional (*Forrester*, *Cleavinger*). Whether a later Ninth Circuit case expressly limited *Sykes* on this point was **not checked** [U; KeyCite *Sykes* before relying on this]. Expect Defendants to cite it anyway; the answer is that it predates the functional test and involved licensing discretion, not adjudication.

- **Implications for Counts I–II (damages).** Even without *Sykes*, *Butz* and *Cleavinger*, plus the two *Rasmussen* rulings, make absolute immunity the defense's strongest argument against Candelaria. If it succeeds, Counts I–II end. **Absolute immunity does not bar prospective *Ex parte Young* relief against Director Gordon in his official capacity (Counts III–IV)**, because the immunity protects individuals from personal damages liability only. (The *Rasmussen Heck* holdings are a separate risk to the damages counts; see § 4.)

How it cuts.

- *Against Brendan:*
- Conducting the hearing, ruling on objections, admitting exhibits, and deciding the case are core adjudicative acts.
- Marshaling and offering DMV exhibits is prosecutorial in nature. Under *Butz* and *Imbler*, that is **also** absolutely immune. ¶¶98 and 118 argue that advocacy defeats immunity, which gets the doctrine backwards.
- California provides review by writ (Veh. Code § 13559; CCP § 1094.5), which supports the "correctability of error" factor.
- The ruling would likely be made on the pleadings, and immunity would defeat the damages counts entirely. Counts III–IV against Gordon are unaffected, because absolute immunity does not bar official-capacity prospective relief.
- *For Brendan (the Cleavinger route):*
- The APS hearing officer is a subordinate civil-service employee of the agency that is a party, not an independent ALJ. Veh. Code § 14112(b) makes **only subdivision (a)** of Gov. Code § 11425.30 inapplicable to license proceedings [O, leginfo]. Subdivision (a) is the general bar on a presiding officer who served as "investigator, prosecutor, or advocate." Subdivisions (b) and (c) are not mentioned in § 14112(b), and § 14112(a) applies the APA to "[a]ll matters in a hearing not covered by this chapter" [O]. See § 3A.
- *CDLA* describes the hearing officer as performing both advocate and fact-finder roles under DMV practice [Justia text; confirm specific record details, such as manager review of decisions, before pleading them — U].
- Those facts map onto *Cleavinger* factors (b), (c), and (e).
- The same logic shows that the process lacks the *Butz* "safeguards" that justify absolute immunity.

Strategy.

1. Amend ¶¶98 and 118, or argue in opposition, using the *Cleavinger* factors. Rely on *CDLA*'s findings about the structure of DMV hearings, and on the Feb. 11, 2025 decision's own wording ("no evidence was presented to the contrary").

2. Identify conduct outside the hearing that is administrative or investigative rather than adjudicative, such as acts before the hearing or record-keeping. *Forrester* and *Swift* say such acts get no absolute immunity. Plead those acts only if they are true.
3. Preserve the issue for appeal. Denial of absolute immunity is immediately appealable by the defendant [U, collateral-order doctrine; verify].
4. Keep Counts III–IV fully independent of Counts I–II so that an immunity ruling does not take down the whole case.

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3. Issue 2: Qualified immunity and "clearly established" law

Controlling law.

- *Pearson v. Callahan*, 555 U.S. 223 (2009) [F]: courts may decide either prong first.
- *Ashcroft v. al-Kidd*, 563 U.S. 731 (2011) [F]: existing precedent must place the question "beyond debate."
- *District of Columbia v. Wesby*, 583 U.S. 48 (2018) [F]: the rule must be dictated by "controlling authority" or "a robust 'consensus of cases of persuasive authority.'"
- *Hope v. Pelzer*, 536 U.S. 730, 741 (2002) [W]: a general rule can give fair warning in an obvious case.
- *Drummond ex rel. Drummond v. City of Anaheim*, 343 F.3d 1052 (9th Cir. 2003) [F]: quoting earlier authority, "in the absence of binding precedent, a court should look to whatever decisional law is available." Only that fragment was matched; read the full passage before quoting more.
- Due-process baseline:
- *In re Murchison*, 349 U.S. 133, 136 (1955) [W]: "[N]o man can be a judge in his own case"; "A fair trial in a fair tribunal is a basic requirement of due process."
- *Withrow v. Larkin*, 421 U.S. 35, 46–47 (1975) [W]: combining investigative and adjudicative functions does not by itself violate due process. A challenger "must overcome a presumption of honesty and integrity in those serving as adjudicators" [F].
- *Caperton*, 556 U.S. 868, 883–84 (2009) [W]: the test is the "probability of actual bias" [F].

What California decisions do in federal court.

- *Cal. DUI Lawyers Ass'n v. DMV* (2022) **77** Cal.App.5th 517 [W, yellow: distinguished by *Kazelka v. DMV*].
- The court held (paraphrase) that combining the roles of advocate and adjudicator in a single DMV hearing officer violates due process under the Fourteenth Amendment and Cal. Const. art. I, § 7 [Justia text; re-read before quoting].
- It held Veh. Code § 14112(b) unconstitutional to that extent.
- It directed a permanent injunction against DMV "having its APS hearing officers function as advocates for the position of the DMV in addition to being finders of fact" [Justia].
- It is therefore a **federal-law** holding, not only a state-law one.

- A state intermediate appellate court's reading of the Fourteenth Amendment does **not** bind a federal court. It is persuasive at most.
- The later cases point different ways:
- *Knudsen v. DMV* (2024) 101 Cal.App.5th 186, 207 [W]: "The analysis will necessarily depend on the unique facts of each hearing."
- *Clarke v. Gordon* (2024) 104 Cal.App.5th 1267, 1277 [W]: found advocacy where the hearing officer "marshalled, identified, and offered into evidence the DMV's exhibits."
- ***Romane v. DMV* (2025) 110 Cal.App.5th 1002** (4th Dist., Div. 1, D083569, filed Apr. 23, 2025) [WK]. **Review granted Aug. 13, 2025 (S291093).** A hearing officer who merely introduces law-enforcement documents is "collecting and developing evidence, not advocating" (~pp. 1016–19). It distinguished *Clarke*, 104 Cal.App.5th 1267. Because review was granted, it may be cited only for persuasive value or to show a conflict (Cal. Rules of Court, rule 8.1115(e)).
- ***Kazelka v. DMV* (2025) 109 Cal.App.5th 1239** (1st Dist., Div. 3, A163664) [WK, no flag; O, slip opinion]. It held the dual-role claim forfeited (p. 1254). The task notes said the merits were not decided, but **the slip opinion goes on**: "even if it were not forfeited, his due process claim fails on the merits." It found no advocacy where the officer had only served a records subpoena. *Chi* cites *Kazelka* at pp. 1255–1256 as "finding no due process violation." So *Kazelka* is an alternative merits holding against the dual-role claim, not only a forfeiture case.
- ***Chi v. DMV* (2026) 119 Cal.App.5th 473** (1st Dist., Div. 5, A172237, filed Mar. 24, 2026, modified Apr. 7, 2026) [WK]. **Review granted May 13, 2026 (S296201), deferred pending *Romane*.** Citable only for persuasive value or to show the conflict. Holding (p. 483): the hearing officer "did not function as a prosecutor or an advocate"; the combined role "is inquisitorial, rather than adversarial, and does not, by itself, offend due process." At ~p. 484 it says the case law "has taken a wrong turn." It rejects the *Clarke* approach and requires an unacceptable risk of actual bias [O, slip opinion].
- **Bottom line:** the *CDLA*/*Clarke* line is now in open conflict with *Romane*, *Kazelka*, and *Chi*, and the California Supreme Court has taken up the issue. That **strengthens** Candelaria's qualified-immunity defense and **weakens** any argument that the law was clearly established on Jan. 24, 2025. A federal court is unlikely to find a rule "beyond debate" while the state's highest court is still reviewing it.

How it cuts.

- *For Brendan:*
- The general rule (a neutral decisionmaker; no one judges their own case) is as old as *Murchison*.
- By Jan. 2025, the DMV and its Director had been subject for nearly three years to a permanent injunction against exactly this dual role.
- A reasonable hearing officer would know that "marshal, offer, admit, decide" was the conduct *Clarke* condemned.
- *Hope* allows obviousness without a factually identical case.
- *Against Brendan:*
- There is no Supreme Court or Ninth Circuit case holding that an APS hearing officer's dual role violates due process. *Withrow* points the other way at a general level.

- *Knudsen* makes the question fact-specific. *Romane*, *Kazelka*, and *Chi* went the other way, and two of them are under Supreme Court review. Courts routinely grant QI in that situation. **Realistically, expect to lose Count I damages on QI unless the *Hope* obviousness argument carries.**
- QI would not apply to Counts III–IV (official capacity, prospective relief). QI is a defense to damages only [U for a specific cite].

Strategy.

1. Plead specific facts tracking *Clarke*'s three acts: marshaling and offering, ruling on her own exhibits, and the lack of any separate DMV representative. Cite any DMV form or policy language (e.g., DS 2304, if its text is confirmed) as a policy admission [U].
2. Argue the "obvious case" route (*Hope*, *Murchison*), plus *Drummond*'s look-to-available-decisional-law rule. Add the 2022 injunction as notice to the agency. (*CDLA* named the Director; Candelaria's personal notice is a fact question.)
3. Concede candidly that QI is contested, so that losing it does not cost credibility on Counts III–IV.

3A. Recommended focus: the Gov. Code § 11425.30(b)–(c) theory and prospective relief

What the statutes say [O, leginfo].

- Veh. Code § 14112(a): "All matters in a hearing not covered by this chapter shall be governed, as far as applicable, by Chapter 5 (commencing with Section 11500) ... of the Government Code."
- Veh. Code § 14112(b): "Subdivision (a) of Section 11425.30 of the Government Code does not apply to a proceeding for issuance, denial, revocation, or suspension of a driver's license pursuant to this division."
- Gov. Code § 11425.30(b) lets a person serve as presiding officer at successive stages, or after acting only as a decisionmaker or advisor on a preliminary determination, "[n]otwithstanding subdivision (a)." Subd. (c) applies the same separation-of-functions rules to "the agency head or other person or body to which the power to hear or decide in the proceeding is delegated."

The theory. § 14112(b) disables **only** subdivision (a). It does not say subdivisions (b) and (c) are inapplicable. So the argument is that the rest of § 11425.30, through § 14112(a), still governs DMV hearings "as far as applicable." Subdivision (b) defines the narrow conditions under which one person may wear more than one hat. Subdivision (c) extends the separation-of-functions rules to whoever has delegated power to decide. A hearing officer who marshaled and offered the DMV's case falls outside the (b) safe harbors.

Candor. This is an inference from statutory structure, not a holding. Subdivisions (b) and (c) are written as exceptions to, and extensions of, subdivision (a). A court may read § 14112(b) as taking the

whole framework out of license hearings. No case was found adopting or rejecting this reading [U]. It is also a **state-law** theory, and a federal court cannot enjoin state officials on the basis of state law (*Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89 (1984) [U, not pulled]). Use it to show what process the State itself requires (the *Mathews* "value of additional safeguards" factor), and to frame the federal due-process claim. Do not plead it as a stand-alone claim for an injunction.

Why focus here.

1. It does not depend on *Clarke* or on *CDLA*'s federal holding, both now in conflict and under review.
2. Prospective relief against Gordon (Counts III–IV) is not subject to qualified or absolute immunity.
3. The SR-22 condition (§ 13353.4(b)) and the record entry are the continuing effects that keep Counts III–IV live.

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4. Issue 3: Heck / Edwards and preclusion from the unreviewed DMV decision

Heck and Edwards.

- *Heck v. Humphrey*, 512 U.S. 477 (1994) [F]: a § 1983 damages claim is barred if judgment for the plaintiff would "necessarily imply the invalidity" of a conviction or sentence that has not been set aside.
- *Edwards v. Balisok*, 520 U.S. 641 (1997) [F]: extended *Heck* to a prison-discipline procedural claim based on "deceit and bias" of the hearing officer.
- *Nonnette v. Small*, 316 F.3d 872 (9th Cir. 2002) [F]: *Heck* does not bar a § 1983 claim where habeas was unavailable because the challenged custody had been fully served.
- *Lyall v. City of Los Angeles*, 807 F.3d 1178 (9th Cir. 2015) [WK, yellow: overruling recognized by *Freeman v. Mata* (C.D. Cal. 2023); O, slip opinion read]. The *Nonnette* exception is narrow: it "affects only former prisoners challenging loss of good-time credits, revocation of parole or similar matters" (p. 1192). A plaintiff who did not timely pursue available relief is like the plaintiff in *Guerrero v. Gates*, 442 F.3d 697 (9th Cir. 2006), and is barred (pp. 1191–92). "[T]imely pursuit of available habeas relief" is "an important prerequisite" for escaping *Heck*. The ground for the *Freeman* flag was not read [U]; check it before citing.
- **Application:** if *Heck* reaches the APS decision at all, *Lyall* hurts. Brendan did not file a timely § 13559 petition, and the late Sacramento petition was abandoned. That looks like *Guerrero* (no timely pursuit), not *Nonnette*. The best answer is still that *Heck* requires a "conviction or sentence" and there was none.

Application to a civil license suspension: unsettled [U]. A free-source search (CourtListener) found nothing either way [O, negative search only]. The two unreported C.D. Cal. *Rasmussen* rulings applied *Heck* to DMV hearing-officer claims [WK, search results only]. I did not locate controlling Ninth

Circuit authority applying *Heck* to a civil administrative license suspension of a person who was never in custody and never convicted. Arguments:

- *For Brendan:* there is no "conviction or sentence," the DA declined to file, and habeas was never available. *Heck*'s logic is tied to the custody and habeas channel.
- *Against Brendan: Edwards* shows that a claim of a biased adjudicator can imply the invalidity of the result. Some courts extend *Heck*-type reasoning to other unreversed adjudications.

Preclusion (the bigger risk).

- *Univ. of Tenn. v. Elliott*, 478 U.S. 788 (1986) [F]: when a state agency acts "in a judicial capacity," federal courts give its factfinding the "same preclusive effect" it would have in state court. This applies to § 1983 claims.
- *Kremer v. Chemical Constr. Corp.*, 456 U.S. 461 (1982) [F, existence only]: preclusion of state-court judgments.
- *Miller v. County of Santa Cruz*, 39 F.3d 1030 (9th Cir. 1994) [F] and *White v. City of Pasadena*, 671 F.3d 918 (9th Cir. 2012) [F]: apply *Elliott* to unreviewed California administrative findings. The analysis uses *United States v. Utah Constr. & Mining Co.*, 384 U.S. 394, 422 (1966) (cited in *White*) [F as cited].
- *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61 [F]: unless a party challenges the agency's adverse findings "by means of a mandate action in superior court, those findings are binding in later civil actions." The dissent refers to the *Westlake* "requirement that a party exhaust judicial remedies" [F].
- *People v. Sims* (1982) 32 Cal.3d 468 [F, existence and topic only]: collateral estoppel from administrative decisions.
- **Veh. Code § 13559(a)** [F, leginfo]: allows a petition for review "within 30 days of the issuance of the notice of determination." Review is on the record. Subdivision (b) bars collateral estoppel only in a later **criminal** prosecution; it says nothing about civil suits.
- **Facts:**
- The decision issued Feb. 11, 2025, so the 30-day window closed around mid-March 2025.
- The Sacramento petition (26WM000135) was filed around May 2026, outside that window. It was abandoned after the fee waiver was denied and the fee deadline lapsed (around July 27, 2026, per matter records).
- Pull the docket to see whether it was dismissed and whether the dismissal was with or without prejudice.
- **Patsy v. Board of Regents**, 457 U.S. 496 (1982) [W] (no exhaustion requirement for § 1983) answers *administrative* exhaustion. It does **not** answer preclusion by unreviewed findings. ¶117 conflates the two.

How it cuts.

- The DMV found that the officer had reasonable cause, that there was an arrest, and that there was a refusal. If those findings are binding, Count II ("fair hearing") and the damages-causation theory, which depends on showing the result was wrong, weaken sharply.

- Brendan's counter is that preclusion applies only to agencies acting "in a judicial capacity" with an adequate opportunity to litigate (*Elliott*; *Utah Construction*). A tribunal whose adjudicator also served as advocate arguably fails that test. That is the very defect *CDLA* found unconstitutional.
- Issue preclusion also should not reach the **procedural** question of whether the tribunal was neutral, because the DMV never decided it.

Strategy.

1. Frame Count I as a structural claim about the tribunal, not a challenge to the correctness of the findings.
2. Argue that the hearing lacked the "judicial capacity" and fairness preconditions for preclusion.
3. Do not argue that the suspension findings were wrong as a basis for damages unless preclusion is defeated.
4. Correct ¶117. *Patsy* is about exhaustion; address *Elliott* and *Johnson* directly.
5. Disclose the Sacramento petition accurately if it is raised. Do not let the defense frame it as concealed.

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5. Issue 4: Procedural due process adequacy (Mathews, Mackey, Parratt/Zinermon)

Controlling law.

- *Mathews v. Eldridge*, 424 U.S. 319 (1976) [W; pin 344–45 is loosely supportive, so recheck 343–45]: the three-factor balance (private interest, risk of error and value of added safeguards, government interest).
- *Bell v. Burson*, 402 U.S. 535, 539 (1971) [W]: a driver's license is a protected property interest.
- *Mackey v. Montrym*, 443 U.S. 1, 10–11 (1979) [W]: upheld summary suspension for refusal before a hearing, applying *Mathews*.
- *Dixon v. Love*, 431 U.S. 105 (1977) [F]: upheld an initial summary decision based on official records, followed by a full hearing.
- *Loudermill*, 470 U.S. 532, 541 (1985) [W]: what process is due is a federal question. Property "cannot be defined by the procedures provided for its deprivation."
- *Goldberg v. Kelly*, 397 U.S. 254, 271 (1970) [W]: "the decision maker should state the reasons for his determination and indicate the evidence he relied on." This was said in the welfare-termination context; its application to APS hearings is argued by analogy.
- *Parratt v. Taylor*, 451 U.S. 527 (1981) and *Hudson v. Palmer*, 468 U.S. 517 (1984) [F]: for "random and unauthorized" deprivations, an adequate state post-deprivation remedy satisfies due process.
- *Zinermon v. Burch*, 494 U.S. 113 (1990) [F]: *Parratt* does not apply where the deprivation occurs at a "specific, predictable point" in an established procedure, and the state could have provided pre-deprivation safeguards.

How it cuts.

- *Mackey* and *Dixon* defeat any claim that summary suspension without a pre-suspension hearing is unconstitutional. Do not plead that.
- **A Parratt/Zinermon dilemma:**
- If Candelaria's dual role followed DMV policy (the Driver Safety Manual or DMV forms), *Zinermon* applies, *Parratt* does not, and the § 13559 writ does not cure the defect. That reading helps Counts I and III–IV.
- If DMV had abolished the dual role after the 2022 injunction and Candelaria departed from the new policy, Defendants will call her conduct "random and unauthorized" and argue that § 13559 and § 1094.5 review was adequate (*Parratt*/*Hudson*). That helps them on Count I. It also undercuts the ongoing-policy premise of Counts III–IV.
- **Discovery priority:** DMV's post-*CDLA* written policies and Driver Safety Manual revisions in effect on Jan. 24, 2025.
- Count II ("no reasoned engagement"; "no evidence was presented to the contrary") risks being treated as a claim that the decision was erroneous, which is a state-law writ issue, rather than as a constitutional procedure defect. *Goldberg*'s statement-of-reasons rule is the best federal hook. Plead that the decision ignored record evidence that was actually submitted (the § 851.6 certificate and the dashcam), so that the statement of reasons was illusory.

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6. Issue 5: Mercer superseded by Veh. Code § 40300.5(e); reframing to no probable cause

- *Mercer v. DMV* (1991) 53 Cal.3d 753, 760–61 [W, yellow: "Superseded by Statute as Stated in" *Troppman v. Gourley* (2005) and *Dyer v. DMV* (2008)]. It held that, under the statutes then in force, a warrantless DUI arrest required the misdemeanor to be committed in the officer's presence, meaning observed volitional movement.
- **Veh. Code § 40300.5** [F, leginfo; subd. (e) added by Stats. 1996, ch. 1078]: permits a warrantless DUI arrest on reasonable cause when, among other conditions, "(e) The person may destroy or conceal evidence of the crime unless immediately arrested."
- ***Troppman v. Valverde* (2007) 40 Cal.4th 1121** [**WK, yellow flag**: distinguished by *Elmore v. Gordon* (Cal. Ct. App., 2d Dist., Dec. 30, 2021); footnotes read on screen and matched to the SCOCAL slip text]:
- **Holding:** proof of driving immediately before the arrest is not required for a § 13353 refusal suspension. *Troppman* abrogated *Weber v. Orr*, *Medina*, and *Jackson* on that point [WK]. (Full citations for those three were not recorded.)
- **Footnote 11** (p. 1136): *Mercer* held the lawful-arrest requirement unmet because the law then required the officer to observe volitional movement. "Thereafter, the Legislature took such action, allowing warrantless arrest for a misdemeanor driving-while-under-the-influence violation not committed in the arresting officer's presence, in circumstances in which the person otherwise might destroy or conceal evidence. (§ 40300.5, subd. (e), as added by Stats.1996, ch.

1078, § 6 ...)" The footnote goes on to cite *People v. Schofield* (2001) 90 Cal.App.4th 968, 974–975.
- **Footnote 12** (official page **not pinned**; it is about pp. 1137–39, so confirm before citing): "Sections 13353 and 23612 both condition the loss-of-license sanction upon the DMV's finding of a lawful arrest for driving while under the influence of alcohol or a drug—a finding that is dependent upon an officer's possessing probable cause to believe the person was driving in that condition."
- **Body text:** the statute "does not require evidence that actual driving occurred immediately prior to the arrest."
- *People v. Schofield* (2001) 90 Cal.App.4th 968 [F, existence only]: subdivision (e) covers metabolic dissipation of evidence, per *Troppman*'s parenthetical.
- *Dyer v. DMV* (2008) 163 Cal.App.4th 161 [W, no flag]: says *Mercer* rested on statutes "as then written" and on statutory construction. **Dyer does not itself say Mercer is superseded.** That characterization is Westlaw's editorial flag.
- *Brierton v. DMV* (2005) 130 Cal.App.4th 499 and *Gikas v. Zolin* (1993) 6 Cal.4th 841 [F, existence only]: on whether a lawful arrest is an issue at the APS hearing. Read both before citing.

Reframing. Delete "binding/controlling Mercer" (¶¶4(b), 37, 59, 61, 91, 102(b), 104). Replace it with three points:

1. Under *Troppman* fn. 12 and § 23612(a)(1)(A) ("lawfully arrested"), the DMV had to find a lawful arrest supported by **probable cause** to believe he had been driving under the influence.
2. The record before Candelaria contradicted probable cause: the dashcam ("I think it's booze," then "this is piss"), no verbalized odor of alcohol, a PAS test described as voluntary, the § 851.6 certificate, the § 849(b)(1) release, and the DA's declination.
3. The decision did not engage with that evidence.

Candor: circumstantial evidence will likely satisfy "reasonable cause to believe ... had been driving": he was alone in the driver's seat on a freeway shoulder. Subdivision (e) of § 40300.5 will likely be held satisfied. Behan ("Once a lawful arrest, always a lawful arrest") [W] and *Armondo* [W, name corrected] limit what the § 849(b)(1) release does in APS proceedings. In federal court this is chiefly background to the fairness claim. It is not an independent federal claim.

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7. Issue 6: Ex parte Young scope (Counts III–IV)

Controlling law.

- *Ex parte Young*, 209 U.S. 123 (1908) [W, yellow; core doctrine intact; the better pin is about 155–60].
- *Verizon Md. v. PSC*, 535 U.S. 635, 645 (2002) [W]: a "straightforward inquiry" into whether the complaint alleges an ongoing violation of federal law and seeks relief properly characterized as prospective. Verizon is quoting **Justice O'Connor's concurrence** in *Idaho v. Coeur d'Alene*

Tribe, 521 U.S. 261, 296 (1997). In *Coeur d'Alene*, Justice Kennedy's opinion is the opinion of the Court only as to **Parts I, II-A, and III**. Pages 276–77 are in **Part II-C**, joined only by Chief Justice Rehnquist, so they are **not** a majority holding [WK; syllabus also read on Cornell LII].

- *Edelman v. Jordan*, 415 U.S. 651 (1974) [F]: no retroactive monetary relief.
- *Green v. Mansour*, 474 U.S. 64 (1986) [F]: no declaratory judgment that state officials violated federal law in the past, absent an ongoing violation.
- *Flint v. Dennison*, 488 F.3d 816 (9th Cir. 2007) [F]: an order to expunge records was sought and treated as prospective relief. Verify the pin before citing.
- *Doe v. Lawrence Livermore Nat'l Lab.*, 131 F.3d 836 (9th Cir. 1997) [F]: "request for reinstatement constitutes prospective injunctive relief."
- *Villa v. Maricopa County*, 865 F.3d 1224, 1229 (9th Cir. 2017) [W]; *O'Shea*, 414 U.S. 488, 496 [W]; *Lyons*, 461 U.S. 95, 111 [W]: standing for prospective relief.
- *Will v. Mich. Dep't of State Police*, 491 U.S. 58, 71 n.10 (1989) [quoted in *CDLA*; U independently]: official-capacity suits for prospective relief are against a "person."

Application.

Requested relief	Likely treatment	Notes
Vacate the suspension	**Moot** in part	The suspension ran Feb. 20, 2025 to Feb. 19, 2026.
Lift the SR-22	**Strongest** prospective claim	A continuing present adverse effect (*Villa*/*O'Shea*). Source: Veh. Code § 13353.4(b) (proof of financial responsibility as a condition of restoring the privilege after a § 13353 suspension); release after three years under §§ 16480(a)(2) and 16482(b) [O]. No statute sets a 3-year term running from the refusal, so the end date (about May 2029) is DMV practice; tie it to the DMV letter.
Expunge or correct the DMV record of the APS action	Likely prospective (*Flint*; *Doe*)	Tie it to concrete ongoing harm: CDL record, insurance, employer screening.
Refund the $125 reissue fee	**Barred** (retrospective money; *Edelman*)	Note that §§ 14904(b) and 14906(b) waive the fee when a suspension is "set aside," which could follow indirectly from vacatur.
Order a neutral decisionmaker in any future hearing	**Standing risk** (*Lyons*)	There is no pending or likely APS hearing. *CDLA* already enjoins the practice statewide, so this is arguably redundant.
Declarations ¶108(a)–(d) about past conduct	**Barred** if only retrospective (*Green*)	Tie each declaration to the SR-22 and record relief.

Proper defendant and Rule 25(d). As of October 2026, DMV's official leadership page, the 2026–2031 DMV Strategic Plan letter, and AP and Governor's Office items from Mar.–Apr. 2026 identify **Steve Gordon** as DMV Director [web sources, Oct. 25, 2026]. No substitution is needed now. If he leaves office, Fed. R. Civ. P. 25(d) substitutes his successor automatically: "The officer's successor is automatically substituted as a party" [O, LII]. Gordon must have a "fairly direct" connection to enforcing the SR-22 and record [U, Ninth Circuit "connection" cases not pulled]. As Director of the agency that keeps the record and enforces the SR-22, that connection is likely.

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8. Issue 7: Damages and fees

- **Carey v. Piphus**, 435 U.S. 247, 264–67 (1978) [W, pins 264–65; F for the quote]:
- Distress damages require proof of actual injury.
- If the deprivation would have occurred anyway, recovery is limited to nominal damages "not to exceed one dollar."
- **Memphis Cmty. Sch. Dist. v. Stachura**, 477 U.S. 299 (1986) [F]: no damages based on the "abstract value" of constitutional rights.
- **Smith v. Wade**, 461 U.S. 30, 56 (1983) [W]: punitive damages require evil motive or intent, or "reckless or callous indifference" to federally protected rights.
- Westlaw yellow flag: "superseded by statute as stated in" *Ngo v. Reno Hilton* (9th Cir. 1998) [WK]. That treatment concerns an unrelated statutory context, not the § 1983 punitive-damages standard, which remains usable.
- Punitive damages are unavailable against Gordon in his official capacity.
- The post-2022 injunction is the best evidence of reckless indifference.
- **Causation of lost wages.**
- The Dec. 4, 2024 stay and temporary license already barred commercial driving, before the Jan. 24 hearing and the Feb. 11 decision.
- Wages lost Nov. 2024–Feb. 2025 flow from the arrest, the DS-367, and the statutory scheme, not from Candelaria. Those losses belong, if anywhere, in the CHP-officer case.
- Losses from Feb. 20, 2025 forward are recoverable only if a neutral adjudicator would probably have set the suspension aside (*Carey*). Under *Troppman*'s reasonable-cause standard, that is an uphill showing.
- Mitigation will be pressed (Answer Aff. Def. 19).
- Avoid double recovery across the related actions.
- **Kay v. Ehrler**, 499 U.S. 432 (1991) [W]: a pro se litigant, even a lawyer, cannot recover § 1988 attorney's fees. Costs remain recoverable. Delete or limit the fees prayer (¶9; Prayer C.5) unless counsel appears.
- **Nominal damages plus prospective relief** is a realistic floor. Plead nominal damages expressly.

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9. Issue 8: Venue

- 28 U.S.C. § 1391(b) [F, LII]: venue lies (1) where any defendant resides, if all defendants reside in the same state, or (2) where "a substantial part of the events or omissions" occurred.
- 28 U.S.C. § 84(a)–(b) [O, LII; § 84 amended by Pub. L. 119-109, § 3 (Sept. 16, 2026)]: Alameda County is in the Northern District (§ 84(a)). Sacramento and San Joaquin Counties are in the Eastern District (§ 84(b)). (Any earlier draft cite to "§ 84(b)–(c)" is wrong: § 84(c) is the Central District.) Transfer: § 1404(a) ("to any other district or division where it might have been brought"); § 1406(a) (wrong district: "dismiss, or if it be in the interest of justice, transfer") [O, LII].
- **Facts cutting against N.D. Cal.**
- The hearing was held on Microsoft Teams.

- The record suggests Candelaria and Gordon were served through Sacramento, which is in E.D. Cal.
- The decision was mailed to Brendan in Stockton (San Joaquin County, E.D. Cal.).
- The suspension and SR-22 harms are felt in E.D. Cal.
- **Facts for N.D. Cal.**
- The arrest, the DS-367, the § 851.6 certificate, and the CHP Dublin Area records arose in Alameda County.
- The hearing evaluated those events.
- Venue can be proper in more than one district.
- **Posture.**
- The stricken answer pleaded "Venue does not lie in this Court" (Aff. Def. 8).
- Under Fed. R. Civ. P. 12(h)(1), a party "waives any defense listed in Rule 12(b)(2)–(5)" (venue is 12(b)(3)) by omitting it from a Rule 12 motion or failing to include it in a responsive pleading [O, LII]. Watch the Oct. 27 filing.
- If venue is challenged, § 1406(a) allows transfer "in the interest of justice" instead of dismissal [O]. Transfer to E.D. Cal. (Sacramento) is low-cost.
- **Prior E.D. Cal. action** [O, CourtListener/RECAP docket]: *(PS) Newanforbi v. Candelaria*, No. 2:26-cv-00983 (E.D. Cal.), filed Mar. 19, 2026 (Judge Dena M. Coggins; referred to Magistrate Judge Chi Soo Kim). ECF 3 (Apr. 22): IFP denied without prejudice. ECF 4–5 (Apr. 30): renewed IFP application and First Amended Complaint. ECF 6 (June 15), docket text: F&R "RECOMMENDING: Plaintiff's 4 motion to proceed in forma pauperis be DENIED; Plaintiff's 5 First Amended Complaint be DISMISSED without leave to amend; and the Clerk of the Court be directed to CLOSE." ECF 7 (June 23): objections. ECF 8–9 (July 10) and a July 16 entry have no description on RECAP. **How the case ended, and the F&R's reasoning, are unverified** (needs PACER: ECF 6 and 8–10). An earlier draft said the case was voluntarily dismissed; that is not confirmed by the docket text read. Expect Defendants to raise this history.
- Plead the § 1391(b)(2) facts precisely: the APS proceeding adjudicated an Alameda County arrest on Alameda County records.
- The FAC's "Intradistrict Assignment" heading should read "Divisional Assignment" under Civil L.R. 3-5(b) [statute check].

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10. Citation corrections for the complaint (FAC, ECF No. 6)

#	FAC location	Problem	Correction	Source
1	¶¶68(a), 96	*Cal. DUI Lawyers* cited as **11** Cal.App.5th 517. That cite is *Hinrichs v. Melton* (2017).	**77** Cal.App.5th 517 (2022)	[W]
2	¶38	"Arnondo/Annondo v. DMV"	***Armondo* v. Department of Motor Vehicles** (1993) 15 Cal.App.4th 1174	[W]
3	¶45	*People v. Medina* (1972) 6 Cal.3d 484: **RED flag**, disapproved by *Kowis v. Howard* (1992) 3 Cal.4th	Remove it, or confirm it is not cited for the disapproved point.	[W]; [F] *Kowis*

#	FAC location	Problem	Correction	Source
		888. *Kowis* cites *Medina* at p. 490 on summary denial of a pretrial writ.		
4	¶37	*Music v. DMV*, 221 Cal.App.3d 841, **850**: p. 850 concerns the presence and volitional-movement rule, not "lawfulness of arrest is a hearing issue." The case is yellow-flagged.	Fix the pin or the proposition. Consider *Troppman* fn. 12 instead.	[W]
5	¶109	*Ex parte Young*, 209 U.S. at **157–59**: 157 concerns the officer's connection to enforcement.	Use 155–60 (or 155–56, 159–60).	[W]
6	¶¶64, 101	*Mathews*, 424 U.S. at **344–45**: only loosely supports "eliminating meaningful factual inquiry."	Recheck 343–45; paraphrase without quotation marks.	[W]
7	¶¶57, 64, 101, 103	*Goldberg*, 397 U.S. at 271: accurate as a **paraphrase only**. The source reads "the decision maker should state the reasons for his determination and indicate the evidence he relied on."	Do not present the paraphrase in quotation marks. Quote the source verbatim if quoting.	[W]
8	¶36(c)	Pen. Code § 851.6(a) **misquoted** ("shall issue to that person a certificate...").	Actual text: "the person shall be issued a certificate, signed by the releasing officer or his superior officer, describing the action as a detention."	[F] leginfo
9	¶¶3, 53, 82–83, 114(c), 125	Veh. Code § **16430** only defines "proof of financial responsibility" (repealed and re-added, operative Jan. 1, 2025). It does not impose the 3-year SR-22 requirement.	Cite **Veh. Code § 13353.4(b)** for proof of financial responsibility as a condition of reinstatement after a § 13353 suspension, and **§§ 16480(a)(2), 16482(b)** for release after three years. Do not plead a statutory "3 years after refusal" term; none was found. Quote § 16430 only as the decision's wording and as the definition.	[O] leginfo (§ 13353.4(b) text from the AB 366 comparison view; codified text **not yet confirmed**; § 16481 not obtained)
10	¶28	Veh. Code §§ **13353.1** and **13389** cover the under-21 / DUI-probation PAS refusal and are **inapplicable**. § 13353.2 is the 0.08% per se suspension, not a refusal suspension.	State that they appear only as printed on the DS-367 form, and that they do not apply.	[F]
11	¶¶17, 76	"§§ 13353–13389" range misdescribes the hearing procedure.	Add §§ 13557(b)(1), 13558(c)(1), 13559, and 14100 et seq.	[F]
12	¶23	"Federal Hours-of-Service rules" (49 C.F.R. Part 395) govern on-duty commercial motor vehicle drivers. He was in a passenger rental car.	Delete or soften.	[F] eCFR
13	¶121 (complaint citation id 55)	*Coeur d'Alene*, 521 U.S. at **276–77** is cited as the Court's holding. Pp. 276–77 are in **Part II-C**, joined only by Kennedy, J. and Rehnquist, C.J. The majority opinion is Parts I, II-A, and III.	Cite *Verizon*, 535 U.S. at 645 (quoting *Coeur d'Alene*, 521 U.S. at 296 (O'Connor, J., concurring in part and concurring in the judgment)). Do not cite 276–77 as a majority holding.	[WK]; [O] LII syllabus

#	FAC location	Problem	Correction	Source
14	¶¶4(b), 59, 61, 91, 102(b)	*Mercer* called "binding" and "controlling" without disclosing § 40300.5(e) or *Troppman*.	See § 6 above. Disclose the statute and reframe.	[W]/[F]
15	(any use of *Dyer*)	*Dyer* does **not** say *Mercer* was superseded. That is Westlaw's flag language.	Cite *Troppman* fn. 11 for supersession. Cite *Dyer* only for "as then written" and "statutory construction."	[W]
16	¶91; Prayer A.2	*Smith v. Wade*: yellow flag, superseded by statute as stated in *Ngo v. Reno Hilton* (9th Cir. 1998). That concerns an unrelated statutory context.	Keep the cite; the § 1983 punitive-damages standard remains usable.	[WK]
17	¶¶98, 118	*Forrester*: yellow flag, superseded by statute as stated in *Olsen v. Idaho State Bd. of Medicine* (9th Cir. 2004). That concerns an unrelated statutory context. The FAC's use of it (functional approach) is accurate.	Keep the cite; reframe the immunity argument per § 2.	[WK]
18	¶117	*Patsy* is cited as if it answers the § 1094.5 question. *Patsy* concerns exhaustion only. Westlaw notes PLRA abrogation, which is irrelevant here.	Add an *Elliott*/*Johnson* preclusion response.	[W]/[F]
19	¶9; Prayer C.5	§ 1988 attorney's fees are not available to a pro se litigant (*Kay v. Ehrler*).	Limit the request to costs.	[W]
20	¶¶72, 118	*Knudsen* at 207: the quote is verified.	No change.	[W]
21	¶69	*Clarke*, 104 Cal.App.5th at 1277: quote verified; the ellipsis and "[and]" are acceptable.	Keep the quote, but disclose that *Chi* rejects *Clarke* and that *Romane* and *Chi* are under Supreme Court review. Do not call the *CDLA*/*Clarke* rule settled.	[W]/[WK]
26	¶¶5, 50, 71, 77, 122	*CDLA* line presented as settled.	Add: "but see *Romane* (review granted, S291093); *Chi* (review granted, S296201); *Kazelka*."	[WK]
27	Any SAC or opposition	*Troppman* fn. 12 pin.	Cite fn. 12 without a page until the official page is confirmed (about 1137–39). Fn. 11 is at p. 1136.	[WK]
22	¶¶93, 119	*Murchison* at 136: quotes verified.	No change.	[W]
23	¶¶90, 110, 123	*Villa* at 1229: quote verified, with acceptable bracketed alterations.	No change.	[W]
24	¶¶13, 14	L.R. 3-5(b) heading; the L.R. 3-12 relation motion goes in the lowest-numbered case.	Retitle as "Divisional Assignment." Note that Dkt. 13 denied relation to *Serrato*.	[F]
25	Caption	-LJC suffix	Use **3:26-cv-08272-RFL** going forward.	Dkt. 24

11. Recommended near-term actions (deadline-driven)

1. **Oct. 27, 2026:** Defendants' response to the FAC is due (Dkt. 24). If it is a Rule 12 motion, the opposition clock is governed by Civil L.R. 7-3. Confirm on the notice of motion.
2. Prepare the opposition themes now:
3. the *Cleavinger* independence factors against absolute immunity;
4. *Hope*/*Murchison* plus the 2022 *CDLA* injunction against QI (weaker now that *Romane* and *Chi* are under review);
5. § 11425.30(b)–(c) and the § 14112(b) text as the framework for the process due (§ 3A);
6. preclusion fails for lack of a neutral, judicial-capacity tribunal;
7. the SR-22 and record as the ongoing violation for Ex parte Young;
8. concede that the $125 refund and retrospective declarations are not available.
9. Consider seeking leave to file a Second Amended Complaint (Rule 15(a)(2)) that fixes the § 10 citation table, reframes away from Mercer, drops the § 1988 fees request, and pleads nominal damages.
10. Discovery targets after the pleadings stage:
11. DMV Driver Safety Manual and hearing-officer policies in effect on Jan. 24, 2025, and any post-*CDLA* reorganization;
12. Candelaria's training;
13. whether any DMV presenter or advocate existed in other hearings at that time;
14. the hearing audio.
15. Pull the 26WM000135 docket to confirm how it ended. Obtain the E.D. Cal. F&R text and disposition (2:26-cv-00983, ECF Nos. 6, 8–10) from PACER. Neither was available to this research.
16. Read the two *Rasmussen* C.D. Cal. rulings in full and KeyCite *Sykes*; Defendants are likely to cite them.
17. Watch the California Supreme Court docket in *Romane* (S291093). A decision either way will change the QI and *CDLA* analysis.

Appendix A: Verification table

Legend: **W** = Westlaw KeyCite, first session, Oct. 25, 2026 (flag shown). **WK** = Westlaw-KeyCited, second session (Clark County, NV patron access, Oct. 25, 2026, read on screen). **O** = official or free primary source read (gap-closure.md). **F** = free full-text source (no citator). **U** = unverified.

Authority	Status	Flag / notes	Source
Ex parte Young, 209 U.S. 123 (1908)	W	Yellow; core intact; pin 155–60	results-batch1
Mercer v. DMV, 53 Cal.3d 753 (1991)	W	Yellow; superseded by statute as stated in Troppman v. Gourley; Dyer	batch1
Music v. DMV, 221 Cal.App.3d 841 (1990)	W	Yellow; pin problem	batch1
Behan v. Alexis, 116 Cal.App.3d 403 (1981)	W	No flag; quote verified	batch1
	W	Yellow (unrelated); name corrected	batch1

Authority	Status	Flag / notes	Source
Armondo v. DMV, 15 Cal.App.4th 1174 (1993)			
Cal. DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022)	W + F	Yellow (distinguished by Kazelka); text read on Justia	batch1; Justia
Knudsen v. DMV, 101 Cal.App.5th 186 (2024)	W	Yellow (distinguished by Romane)	batch1
Clarke v. Gordon, 104 Cal.App.5th 1267 (2024)	W	Yellow (disagreed with by Chi); later history not separately checked	batch1
Chi v. DMV (2026) 119 Cal.App.5th 473 (A172237)	**WK** + O	**Review granted May 13, 2026 (S296201)**, deferred pending Romane; persuasive/ conflict only; holding p. 483, "wrong turn" ~p. 484	Westlaw; courts.ca.gov slip
Romane v. DMV (2025) 110 Cal.App.5th 1002 (D083569)	**WK**	**Review granted Aug. 13, 2025 (S291093)**; ~pp. 1016–19	Westlaw
Kazelka v. DMV (2025) 109 Cal.App.5th 1239 (A163664)	**WK** + O	No flag; forfeited (p. 1254) and alternative merits holding (pp. 1255–56)	Westlaw; courts.ca.gov slip
Sykes v. California (DMV), 497 F.2d 197 (9th Cir. 1974)	O (full text)	**Not KeyCited**; not a hearing-officer case; pin 201 unconfirmed	OpenJurist; CourtListener
Rasmussen v. Cal. DMV, 2009 WL 605784; 2008 WL 5274611 (C.D. Cal.)	WK (search results only)	Unreported; not read in full	Westlaw search
People v. Torres, 173 Cal.App.4th 977 (2009)	W	Yellow	batch1
Wong Sun; Terry; Florida v. Royer; Brown v. Texas; Brown v. Illinois	W	Yellow; core intact	batch1
People v. Medina, 6 Cal.3d 484 (1972)	W	**RED**: disapproved by Kowis v. Howard	batch1
Kowis v. Howard, 3 Cal.4th 888 (1992)	F	Discusses Medina at 490	CourtListener
McDonnell v. DMV, 45 Cal.App.3d 653 (1975)	W	Yellow (out-of-state)	batch1
Goldberg v. Kelly, 397 U.S. 254 (1970)	W	Yellow; paraphrase only	batch1
Mathews v. Eldridge, 424 U.S. 319 (1976)	W	Yellow; pin partial	batch1
Withrow v. Larkin, 421 U.S. 35 (1975)	W + F	Yellow	batch1; CL
In re Murchison, 349 U.S. 133 (1955)	W	Yellow; quotes verified	batch1
Caperton, 556 U.S. 868 (2009)	W + F	Yellow	batch2; CL
Bell v. Burson, 402 U.S. 535 (1971)	W	Yellow	batch2
Mackey v. Montrym, 443 U.S. 1 (1979)	W	Yellow	batch2
Loudermill, 470 U.S. 532 (1985)	W	Yellow	batch2
Butz v. Economou, 438 U.S. 478 (1978)	W + F	Yellow	batch2; CL
Forrester v. White, 484 U.S. 219 (1988)	**WK**	Yellow: superseded by statute as stated in Olsen (unrelated context)	Westlaw
Cleavinger v. Saxner, 474 U.S. 193 (1985)	W + F	Yellow	batch2; CL
Swift v. California, 384 F.3d 1184 (9th Cir. 2004)	W	Yellow (minor)	batch2

Authority	Status	Flag / notes	Source
Ashcroft v. Iqbal, 556 U.S. 662 (2009)	W	Yellow	batch2
Hope v. Pelzer, 536 U.S. 730 (2002)	W	Yellow	batch2
Verizon Md. v. PSC, 535 U.S. 635 (2002)	W	Yellow; O'Connor-concurrence attribution	batch2
Idaho v. Coeur d'Alene Tribe, 521 U.S. 261 (1997)	**WK** + O	Majority = Parts I, II-A, III; pp. 276–77 in Part II-C (plurality of 2)	Westlaw; LII
Villa v. Maricopa County, 865 F.3d 1224 (9th Cir. 2017)	W	Yellow (trivial)	batch2
O'Shea v. Littleton, 414 U.S. 488 (1974)	W	Yellow	batch2
City of Los Angeles v. Lyons, 461 U.S. 95 (1983)	W	Yellow	batch2
Carey v. Piphus, 435 U.S. 247 (1978)	W + F	Yellow	batch2; CL
Smith v. Wade, 461 U.S. 30 (1983)	**WK**	Yellow: superseded by statute as stated in Ngo v. Reno Hilton (unrelated context)	Westlaw
Patsy v. Board of Regents, 457 U.S. 496 (1982)	W	Yellow (PLRA; irrelevant)	batch2
Dyer v. DMV, 163 Cal.App.4th 161 (2008)	W	No flag	batch2
Kay v. Ehrler, 499 U.S. 432 (1991)	W + F	Yellow; holding intact	batch2; CL
Troppman v. Valverde, 40 Cal.4th 1121 (2007)	**WK** + O	Yellow (distinguished by Elmore v. Gordon, 2021); fn. 11 at p. 1136; fn. 12 page not pinned (~1137–39)	Westlaw; scocal
People v. Schofield, 90 Cal.App.4th 968 (2001)	F (existence)	Not read	CL
Brierton v. DMV, 130 Cal.App.4th 499 (2005)	F (existence)	Not read	CL
Gikas v. Zolin, 6 Cal.4th 841 (1993)	F (existence)	Not read	CL
Imbler v. Pachtman, 424 U.S. 409 (1976)	F	Phrase matched	CL
Stump v. Sparkman, 435 U.S. 349 (1978)	F (existence)		CL
Mireles v. Waco, 502 U.S. 9 (1991)	F	Phrase matched	CL
Mishler v. Clift, 191 F.3d 998 (9th Cir. 1999)	F	Phrase matched	CL
Olsen v. Idaho State Bd. of Med., 363 F.3d 916 (9th Cir. 2004)	F	Phrase matched	CL
Buckwalter v. Nev. Bd. of Med. Exam'rs, 678 F.3d 737 (9th Cir. 2012)	F	Phrase matched	CL
Pearson v. Callahan, 555 U.S. 223 (2009)	F (existence)		CL
Ashcroft v. al-Kidd, 563 U.S. 731 (2011)	F	"beyond debate" matched	CL
District of Columbia v. Wesby, 583 U.S. 48 (2018)	F	"robust 'consensus'" matched	CL
Drummond v. City of Anaheim, 343 F.3d 1052 (9th Cir. 2003)	F	Fragment matched	CL
Heck v. Humphrey, 512 U.S. 477 (1994)	F	Phrase matched	CL
Edwards v. Balisok, 520 U.S. 641 (1997)	F	Phrase matched	CL

Authority	Status	Flag / notes	Source
Nonnette v. Small, 316 F.3d 872 (9th Cir. 2002)	F		CL; Justia
Lyall v. City of Los Angeles, 807 F.3d 1178 (9th Cir. 2015)	**WK** + O	Yellow (overruling recognized by Freeman v. Mata, C.D. Cal. 2023); pp. 1191–92	Westlaw; ca9 slip
Univ. of Tenn. v. Elliott, 478 U.S. 788 (1986)	F	Phrases matched	CL
Kremer v. Chemical Constr., 456 U.S. 461 (1982)	F (existence)		CL
Miller v. County of Santa Cruz, 39 F.3d 1030 (9th Cir. 1994)	F		CL
White v. City of Pasadena, 671 F.3d 918 (9th Cir. 2012)	F		CL
Johnson v. City of Loma Linda, 24 Cal.4th 61 (2000)	F	Phrase matched	CL
People v. Sims, 32 Cal.3d 468 (1982)	F (topic)		CL
Dixon v. Love, 431 U.S. 105 (1977)	F		CL
Parratt v. Taylor, 451 U.S. 527 (1981)	F		CL
Hudson v. Palmer, 468 U.S. 517 (1984)	F (existence)		CL
Zinermon v. Burch, 494 U.S. 113 (1990)	F	Phrases matched	CL
Edelman v. Jordan, 415 U.S. 651 (1974)	F		CL
Green v. Mansour, 474 U.S. 64 (1986)	F		CL
Flint v. Dennison, 488 F.3d 816 (9th Cir. 2007)	F	"expungement" matched; pin not checked	CL
Doe v. Lawrence Livermore, 131 F.3d 836 (9th Cir. 1997)	F	Phrase matched	CL
Memphis Cmty. Sch. Dist. v. Stachura, 477 U.S. 299 (1986)	F	Phrase matched	CL
Will v. Mich. Dep't of State Police, 491 U.S. 58 (1989)	U	Quoted within CDLA only	Justia (CDLA)
U.S. v. Utah Constr. & Mining, 384 U.S. 394 (1966)	U	As cited in White	CL (White)
Veh. Code §§ 13353, 13557, 13558, 13559, 14904, 14906, 16020, 16430, 23612, 40300.5; Pen. Code §§ 849, 849.5, 851.6; CCP § 1094.5	F	Official text	leginfo (results-statutes.csv; § 13559 fetched Oct. 25)
Veh. Code § 14112(a)–(b); Gov. Code § 11425.30(a)–(c)	O	Official text	leginfo
Veh. Code § 13353.4(b)	O (partial)	Text from AB 366 comparison view; **codified text not confirmed**	leginfo (AB 366)
Veh. Code §§ 16480(a)(2), 16482(b), 16483, 16484	O	No express "3 years after refusal"	leginfo
Veh. Code § 16481	**U**	leginfo page returned empty	none
	F		Cornell LII

Authority	Status	Flag / notes	Source
28 U.S.C. §§ 1331, 1343, 1391, 2201–2202; 42 U.S.C. §§ 1983, 1988			
Fed. R. Civ. P. 12(h)(1), 25(d); 28 U.S.C. §§ 84(a)–(b), 1391(b), 1404(a), 1406(a)	O	Text read	Cornell LII
Newanforbi v. Candelaria, 2:26-cv-00983 (E.D. Cal.)	O (docket text)	ECF 6 F&R docket text read; F&R itself and ECF 8–10 not read	CourtListener/RECAP
Sacramento Super. Ct. 26WM000135	**U**	Not found	none

Remaining unverified items to clear before filing:

1. E.D. Cal. 2:26-cv-00983: the ECF 6 F&R text and ECF 8–10 (the disposition). Needs PACER.
2. Sacramento Super. Ct. 26WM000135: outcome and whether any dismissal was with or without prejudice. Needs the court portal or clerk.
3. Codified text of Veh. Code § 13353.4(b) (current version), and § 16481.
4. Any authority applying *Heck* to a civil or administrative license suspension (only the unreported *Rasmussen* results so far; read them).
5. *Troppman* fn. 12 official page.
6. *Sykes*: KeyCite status and pin page; whether the Ninth Circuit later limited its "discretionary function" immunity rule.
7. The full *Rasmussen* opinions; the ground for the *Lyall*/*Freeman v. Mata* flag; full citations for *Weber v. Orr*, *Medina*, and *Jackson* as abrogated by *Troppman*.
8. Later history of *Clarke v. Gordon*; *Pennhurst* (not pulled); any case reading § 11425.30(b)–(c) as surviving § 14112(b).
9. KeyCite for the remaining F-tier cases.